☒ **District Court** ☐ Denver Juvenile Court **Delta** County, Colorado Court Address: 501 Palmer Street, Suite 338, Delta, CO 81416	▲ **COURT USE ONLY** ▲
Petitioner: PETE McCARTHY, *v.* **Respondent:** SAMIRA M. VETTER, in her official capacity as Town Clerk of the Town of Paonia, Colorado.	**Case Number:** _____ **Division:** _____ **Courtroom:** _____
Attorney or Party Without Attorney (Name and Address): Pete McCarthy, 119½ Dorris Avenue, Paonia, CO 81428 Phone Number: (415) 623-9773 E-mail: petefromsf@gmail.com FAX Number: N/A Atty. Reg. #: *Pro Se*	

EXHIBIT F

Petitioner's Written Response Demanding Acceptance — April 3, 2026

Written response from Pete McCarthy to the April 3, 2026 rejection, rebutting each of the six grounds and demanding acceptance of the citizen initiative petition within five business days.

SENT VIA EMAIL AND HAND DELIVERY

Pete McCarthy 119 1/2 Dorris Ave Paonia, CO 81428 petefromsf@gmail.com (415) 623-9773

April 3, 2026

Samira Vetter, Town Clerk Town of Paonia 214 Grand Avenue Paonia, CO 81428

Re: Rejection of Citizen Initiative Petition — "Surveillance Camera Prohibition"

Dear Ms. Vetter:

I am in receipt of your letter of April 3, 2026, rejecting the citizen initiative petition for the Surveillance Camera Prohibition ordinance. Your rejection rests on six grounds, each of which is legally deficient. I address them in turn.

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1. Single-Subject Violation (Article V, Section 1(5.5), Colorado Constitution)

The initiative addresses a single subject: the prohibition of government surveillance cameras on public property. The exceptions (Section 4), enforcement mechanism (Section 6), contract provisions (Section 5), and amendment process (Section 7) are standard structural components of any ordinance — not independent subjects. They each serve the single policy goal of prohibiting municipal surveillance cameras.

Colorado courts have consistently held that provisions relating to a single policy objective satisfy the single-subject requirement, even when they address multiple operational aspects of that objective. *See In re Title, Ballot Title & Submission Clause for 2007-2008 #62*, 370 P.3d 628 (Colo. 2016) (single-subject satisfied where provisions share a common policy purpose).

Moreover, Article V, Section 1(5.5) primarily governs statewide ballot measures. Its application to municipal citizen initiatives is not established in the manner your rejection assumes. You cite no municipal case law applying this standard to reject a local initiative petition, because the framework for municipal initiatives is governed by the municipality's own charter and the Municipal Home Rule Act.

2. Body-Worn Cameras and the Enhance Law Enforcement Integrity Act

This ground is either a fundamental misreading of the initiative text or a deliberate mischaracterization.

Section 4(a) of the initiative **explicitly exempts** body-worn cameras: *"Body-worn cameras on law enforcement officers, governed by separate policy."*

An exemption is the opposite of regulation. The initiative does not regulate, restrict, mandate, or in any way address body-worn cameras. It carves them out entirely. Citing state preemption of body-worn

camera regulation as grounds to reject an initiative that explicitly excludes body-worn cameras from its scope is without legal basis.

If an ordinance banning sugary drinks explicitly exempted milk, one would not reject it on the grounds that dairy is regulated by the state. The exemption *is* the deference to state law.

3. Surveillance of Public Property as an "Administrative Function"

Your characterization of government surveillance policy as a mere "administrative function" beyond the reach of citizen legislation is both legally incorrect and profoundly troubling in its implications.

Whether a municipal government may conduct persistent video surveillance of its residents in public spaces is a **policy determination of the highest order** — not a ministerial or administrative detail. It implicates fundamental questions of privacy, civil liberties, and the relationship between government and the governed.

Numerous municipalities have enacted surveillance legislation through their legislative processes, including:

- **San Francisco, CA** — banned government use of facial recognition technology (2019)
- **Portland, OR** — enacted a comprehensive surveillance ordinance restricting city acquisition and use of surveillance technologies (2020)
- **Oakland, CA** — passed a surveillance oversight ordinance requiring council approval for surveillance technology (2018)
- **Cambridge, MA** — enacted a surveillance technology ordinance with citizen oversight provisions (2018)

Under your reasoning, none of these ordinances could have been enacted by citizen initiative, and indeed, none could have been enacted by the legislative body itself, since you classify the subject matter as "administrative." This position is untenable. A town board's decision to install surveillance cameras monitoring public spaces is a legislative policy choice, and citizens have the right to legislate on the same subject through the initiative process.

Moreover, the Colorado General Assembly itself has legislated on government surveillance: SB 22-113 regulates facial recognition use by government agencies, and HB 24-1130 (effective July 2025) requires consent for biometric collection, bans selling biometric data, and mandates deletion protocols. If the state legislature can restrict government surveillance technology through legislation, citizens exercising initiative power, which is coextensive with legislative power under Article V, Section 1, can do the same at the municipal level.

4. Contract Provisions (Section 5) as "Administrative Matters"

Section 5 provides that contracts entered into in violation of the ordinance are void. This is a standard enforcement provision, not an independent administrative act.

Legislative bodies restrict government contracting authority constantly: procurement rules, prevailing wage laws, conflict-of-interest provisions, sole-source contract restrictions, and prohibitions on contracts that violate existing law. A provision declaring contracts void if they violate the substantive prohibition of the ordinance is a conventional legislative enforcement mechanism found in ordinances across the country.

Your position would require stripping the enforcement mechanism from every citizen initiative that touches government operations — effectively rendering the initiative power meaningless for any ordinance that the government might implement through contracts.

5. Injunctive Relief (Section 6) as a "Judicial Function"

Section 6 creates a **cause of action** allowing any registered elector to seek injunctive relief for violations. Creating a cause of action is a **legislative function**. Every ordinance with an enforcement or penalty provision creates some form of legal remedy or right of action.

The court then exercises its **judicial function** by adjudicating whether a violation has occurred and whether relief is warranted. The initiative does not — and could not — direct the court to reach any particular outcome. It merely opens the courthouse door.

Your rejection confuses creating a right to seek relief (a legislative act) with the exercise of judicial jurisdiction (a judicial act). If this reasoning were correct, no ordinance could ever provide for enforcement through the courts, which would nullify the enforcement provisions of virtually every law on the books.

For the record, existing surveillance ordinances in other jurisdictions include nearly identical citizen enforcement provisions. Oakland's surveillance ordinance allows "any person who has been subjected to a surveillance technology in violation of [the] Ordinance to recover actual damages" and seek "injunctive relief, declaratory relief, or a writ of mandate," plus reasonable attorney's fees. Berkeley's surveillance ordinance similarly provides for attorney's fees recovery up to $15,000 for prevailing complainants. These provisions have been operative for years without legal challenge to their legislative character. (See UC Berkeley School of Law, "Local Surveillance Oversight Ordinances," February 2021.) Section 6 of my initiative is modeled on these established precedents.

6. Voter Approval for Amendment or Repeal (Section 7)

While there is case law addressing the authority of legislative bodies to bind future legislatures, citizens acting through the initiative process occupy a different constitutional position. The initiative

and referendum powers are reserved to the people and are construed liberally in their favor. *See City of Colorado Springs v. Bull*, 143 Colo. 155 (1960); *Vagneur v. City of Aspen*, 295 P.3d 493 (Colo. 2013).

Critically, even if Section 7 were found to exceed the scope of the initiative power, it would not justify rejection of the entire petition. **Section 8 of the initiative contains an explicit severability clause**, providing that if any provision is held invalid, the remaining provisions shall continue in full force and effect. The appropriate course is to allow the initiative to proceed and let the courts, if called upon, sever any provision found to be invalid — not to reject the entire initiative on the basis of a single potentially severable provision.

A Pattern of Obstruction

This is the **second** citizen initiative petition you have rejected. On May 28, 2025, you rejected the Short-Term Rental initiative on the grounds that eliminating certain fees constituted an "administrative" function. I subsequently learned that Town Attorney Buchner had prepared a detailed legal analysis of that initiative, but it was **withheld from me for nearly ten months** despite my direct inquiries.

Both rejections follow the same framework: characterize every substantive provision as "administrative" to place it beyond the reach of citizen legislation. This framework, if accepted, would render the citizen initiative power a nullity — since virtually any ordinance touching government operations could be characterized as "administrative" under your reasoning.

The cover letter submitted with this initiative specifically warned against bad-faith rejection and outlined the legal consequences. That warning was evidently disregarded.

Demand

I demand that you **accept the Surveillance Camera Prohibition initiative petition for processing within five (5) business days** of the date of this letter — that is, by **April 10, 2026**.

If the petition is not accepted by that date, I intend to file an action in the District Court for Delta County under **C.R.C.P. Rule 106(a)(4)** for judicial review of your decision and **C.R.C.P. Rule 106(a)(2)** for a writ of mandamus compelling acceptance of the petition.

I reserve all rights and remedies available under Colorado law, including but not limited to an award of attorney's fees and costs.

Respectfully,

Pete McCarthy Paonia, CO

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cc: Clay Buchner, Town Attorney Paige Smith, Mayor